

24TRCV01550 24TRCV01550

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Case Number: 24TRCV01550 Hearing Date: July 28, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,
July 28, 2026 Department M Calendar
No.

PROCEEDINGS

Edna

L. Palacios v. General Motors, LLC, et al.

24TRCV01550

1. Edna L. Palacios' Motion to Compel Further Responses
to Request for Production of Documents, Set One

TENTATIVE RULING

Edna L. Palacios' Motion to Compel Further Responses
to Request for Production of Documents, Set One is granted, in part.

Background

Plaintiff filed her Complaint on May 28, 2024. Plaintiff
alleges the following facts. Plaintiff purchased a 2020 GMC Acadia which was
manufactured and distributed by Defendant. The vehicle suffers from defects.
Defendant has not been able to repair the vehicle, and Defendant has refused to

repurchase the vehicle. Plaintiff alleges violations of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act").

Motion to Compel Further Responses to Requests for Production of Documents

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff set forth a meet and confer declaration in substantial compliance with CCP § 2031.310(b)(2). (Declaration, Kyle Lee, ¶¶ 18-26).

Motion to Compel

The Court notes that the parties have been informed numerous times that an IDC was required before hearing and ruling upon this motion. For over a year, the parties have still failed to schedule and conduct the IDC. The Court admonishes both parties and informs the parties that any future motions to compel further responses to written discovery requests

requires an IDC prior ruling on the motions.

Requests for Production of Documents, numbers 16-21, are at issue in this motion.

Requests 16 to 21 specifically seek documents related to Defendant's investigation and analysis of the specific defects related to the same make, model, and year of Plaintiff's vehicle. The definition of the types of documents sought is not overly broad and may lead to the discovery of admissible information. However, the Court narrows the time frame involved from the time that Plaintiff purchased the vehicle in June 2020 to the present date.

The documents that are sought may lead to the discovery of admissible evidence that may be relevant to Plaintiff's claims that Defendant had prior knowledge of the alleged defects to the body system, powertrain, safety system, electrical system, brake system, and noise system plaguing Plaintiff's vehicle, and violated the Song-Beverly Act by refusing to purchase the vehicle. The documents may also lead to the discovery of admissible evidence as to whether Defendant breached the implied warranty of merchantability by selling Plaintiff a vehicle with a known defect.

For example, in *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154, the Court of Appeal held that the trial court did not err in refusing to exclude evidence with respect to vehicles other than Plaintiff's vehicle because Plaintiff's expert testimony was properly limited to the same type of transmission involved in Plaintiff's vehicle as well as the other vehicles at issue. Here, Plaintiff is attempting to pursue discovery related to similar defects that relate to the same year, make, and model as Plaintiff's vehicle.

As to Requests 16 to 21, the motion is granted, in part, subject to the time limitation noted above. The requests are designed to lead to the discovery of admissible evidence in this action. Defendant's responses are evasive, incomplete, and/or Defendant has failed to justify its objections.

Therefore, Defendant is ordered to serve further responses to Requests 16 to 21, without objections, in compliance with the directions set forth within this order, within 20 days of this date.

Plaintiff is ordered to give notice of this ruling.